

02:00 PM

25-CIV-03629 RICHARD FRESCHET VS. ALAN LIM, ET AL.

LINE 3

RICHARD FRESCHET
ALAN LIM

BRIAN J. MCSWEENEY
GEOFFREY W. STEELE

GEOFFREY WM. STEELE'S MOTION TO BE RELIEVED AS COUNSEL

TENTATIVE RULING:

The tentative ruling for Line 2 is hereby incorporated by reference and serves at the tentative for Line 3.

02:00 PM

26-CIV-01347 MARSH & MCLENNAN AGENCY LLC VS. ELMER "RICK" FERGUSON
LINE 4

MARSH & MCLENNAN AGENCY LLC
ELMER "RICK" FERGUSON

BENJAMIN A. EMMERT
PRO PER

PETITIONER: MARSH & MCLENNAN AGENCY LLC'S MOTION FOR AN UNDERTAKING BY DEFENDANT PURSUANT TO CALIFORNIA CODE OF CIVIL PROCEDURE SECTION 1710.50

TENTATIVE RULING:

For the reasons stated below, Plaintiff/Judgment Creditor Marsh & McLennon Agency, LLC's ("MMA") "Motion for an Undertaking by Defendant Pursuant to [CCP] Sect. 1710.50," filed July 21, 2026, is DENIED pending the outcome of the Nov. 16, 2026 hearing on Judgment Debtor Ferguson's motion to vacate entry of the judgment.

The Court HEREBY EXTENDS THE STAY OF ENFORCEMENT issued on July 15, 2026 to Nov. 16, 2026.

On Feb. 24, 2026, Plaintiff/Judgment Creditor MMA filed this case to domesticate a July 1, 2025 money judgment in favor of MMA, and against Defendant/Judgment Debtor Ferguson, issued by U.S. District Court for the Southern District of New York. On May 18, 2026, Mr. Ferguson filed a motion seeking to vacate entry of the judgment, arguing it was procedurally incorrect to use procedures for domesticating a "sister-state" judgment for a judgment issued by a federal district court. Ferguson's initial motion Court denied it on procedural grounds. (June 29, 2026 Order.) On July 8, 2026, Ferguson filed a second motion to vacate entry of the judgment, which is set for hearing on Nov. 16, 2026.

On July 15, 2026, the Court granted Mr. Ferguson's *ex parte* application to stay enforcement of the judgment until at least Aug. 3, 2026. On July 21, 2026, MMA filed the present motion, seeking an order requiring Mr. Ferguson to post a bond/undertaking, pending resolution of Ferguson's appeal of the underlying SDNY judgment to the Second Circuit Court of Appeals.

Under Code Civ. Proc. § 1710.10 *et. seq.*, the Court has discretion as to whether to require an undertaking. The Court entered the judgment in this case based on a purported "sister-state" judgment, pursuant to Code Civ. Proc. § 1710.10 *et. seq.* Accordingly, this Motion is governed by Code Civ. Proc. § 1710.50, which grants this Court the *discretion* to require Mr. Ferguson (the judgment debtor) to post an undertaking pending the resolution of his appeal to the Second Circuit. See § 1710.50(c)(1) ("The court *may* require an undertaking in an amount it determines to be just ..." [emphasis added].)

MMA's use of Code Civ. Proc. § 1710.10 *et. seq.*'s procedures to domesticate a federal court judgment may have been improper. Since the underlying judgment here was issued by a federal court, § 1710.10 *et. seq.*'s procedures for domesticating "sister-state" judgments may not have been the proper procedural mechanism to domesticate the SDNY judgment. § 1710.10(c) states:

As used in this chapter: ...
